of speech, *Virginia Pharmacy Bd.* v. *Virginia Citizens Consumer Council, Inc.*, 425 U. S. 748 (1976), and cannot have its property taken without just compensation, *Penn Central Transportation Co.* v. *New York City*, 438 U. S. 104 (1978). A corporation is also protected from unreasonable searches and seizures, *Marshall* v. *Barlow's, Inc.*, 436 U. S. 307 (1978), and can plead former jeopardy as a bar to a prosecution, *United States* v. *Martin Linen Supply Co.*, 430 U. S. 564 (1977). Furthermore, a corporation is entitled to due process, *Helicopteros Nacionales de Colombia* v. *Hall*, 466 U. S. 408 (1984), and equal protection, *Metropolitan Life Ins. Co.* v. *Ward*, 470 U. S. 869 (1985), of law.

Whether a particular constitutional guarantee applies to corporations "depends on the nature, history, and purpose" of the guarantee. *First National Bank of Boston, supra*, at 779, n. 14. The payment of monetary penalties, unlike the ability to remain silent, is something that a corporation can do as an entity, and the Court has reviewed fines and monetary penalties imposed on corporations under the Fourteenth Amendment at a time when the Eighth Amendment did not apply to the States. See *Waters-Pierce Oil Co.* v. *Texas*, 212 U. S. 86, 111–112 (1909). See also *St. Louis I. M. & S. R. Co.* v. *Williams*, 251 U. S. 63, 66–67 (1919). If a corporation is protected by the Due Process Clause from overbearing and oppressive monetary sanctions, it is also protected from such penalties by the Excessive Fines Clause. See *Whitney Stores, Inc.* v. *Summerford*, 280 F. Supp. 406, 411 (SC) (three-judge court) (entertaining Eighth Amendment challenge by corporation to fine for violation of Sunday closing laws), summarily aff'd, 393 U. S. 9 (1968).

II

Language in *Ingraham* v. *Wright*, 430 U. S. 651 (1977), and *Ex parte Watkins*, 7 Pet. 568 (1833), suggests that the *entire* Eighth Amendment is confined to criminal prosecutions and punishments. But as the Court correctly acknowl-